

JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION

(Authority: 41 U.S.C. 3304(a)(1))

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.3 and in accordance with the requirements of FAR 6.303-1, the justification for the use of the statutory authority under FAR Subpart 6.3 is justified by the following facts and rationale required under FAR 6.303-2 as follows:

1. **Agency and Contracting Activity.** The agency is Transportation Security Administration, and the Contracting Activity is Contracting and Procurement (C&P).

2. **Nature and/or Description of the Action Being Approved.**

(a) ***Nature of the action.*** This document is a “Justification for other than full and open competition” in accordance with FAR 6.302-1 “Only one responsible source and no other supplies or services will satisfy agency requirements.” In alignment with 6.302-1 (a)(2)(ii)(B), supplies may be deemed to be available only from the original source in the case of a follow-on contract for the continued development or production of a major system or highly specialized equipment, including major components thereof, when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency’s requirements.

The Transportation Security Administration (TSA) intends to award a 6-month sole source contract (one 3-month base period + three 1-month option periods) with Narcorps Specialties LLC (hereafter referred to as “Narcorps”) in accordance with FAR 6.302-1 “Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.” This requirement is for TSA’s Role Player Support Services. Narcorps will provide role players as an integral part of training exercises for the TSA Federal Air Marshal Service (FAMS), Federal Flight Deck Officer (FFDO) Recurrent Training Programs, and the Canine Training Center (CTC) Programs. These training exercises are designed to teach the FAM and FFDO law enforcement tasks in various realistic situations. Training exercises for the CTC is designed to teach canine handlers and canine assets to detect explosive material on individuals and their personal effects. Each individual role player adds a sense of realism.

This action is for an interim contract extension (up to 6 months) to current contract # 70T01018C9NOTD001 that ends on 03/31/2025. The follow-on competitive contract was awarded on 08/22/2024 to Vertical Jobs, Inc. but it received a protest at GAO that resulted in corrective action which included cancelling the award and reevaluating. After reevaluation, the competitive contract was awarded on 12/26/2024 to Vertical Jobs, Inc. but it received a protest at GAO on 12/27/2024 that is currently in litigation. A GAO decision is anticipated within 100 days of the protest filing (or 04/06/2025). In the interim, additional time is required to avoid a break in service. The TSA Role Player Support Services are a mission critical requirement that provides mission essential functions. See paragraph #6 for the details.

(b) ***Name and address of the contractor.*** Narcorps Specialties LLC, 417 Stowe Ave. STE #C, Orange Park, FL 32073.

(c) ***Contract type.*** Firm-Fixed Price and Time and Materials.

(d) **Estimated total value (including options). Provide breakdown as shown below:**

Period	Qty	Unit	Total	Period of Performance
Base Period	3	Months		(04/01/2025-06/30/2025)
Option Period 1	1	Months		(07/01/2025-07/31/2025)
Option Period 2	1	Months		(08/01/2025-08/31/2025)
Option Period 3	1	Months		(09/01/2025-09/30/2025)
Total			\$4,068,036.00	

(e) **Type of funding.** Operations and Support Training and Development (T&D).

(f) **Year of funding.** Fiscal Year 2025.

(g) **Solicitation number.** 70T01024Q7670N005.

(h) **Background information about the requirement.** In support of the Role Player Support Services requirement, the Contractor shall furnish all personnel, supervision, management, equipment, materials (except for GFP), transportation, tools, and supplies required to plan, schedule, coordinate, and assure effective performance of all required role player support services for the TSA FAMS, FFDO Recurrent Training Programs, and the CTC Programs.

3. **Description of Supplies/Services.** The major objective of this requirement is to provide role players as an integral part of training exercises for the TSA, FAMS, FFDO, and CTC training programs. These training exercises are designed to teach the FAM and FFDO law enforcement tasks in various realistic situations. Training exercises for the CTC are designed to teach canine handlers and canine assets to detect explosive material on individuals and their personal effects. Each individual role player adds a sense of realism. Role players must have the ability to perform through an inflexible script, as well as an impromptu basis. Depending on the situation, a role player must be able to “live” a role and freely adapt to it in response to the actions of each individual TSA trainee, FAM, FFDO, or CTC handler and canine asset. If this adaptation is not completed, the immediacy and realism of a tense situation may be destroyed. The role player must thoroughly understand the objective of each training situation and of the roles being played. Each role player must be able to adjust to a variety of outcomes and react in the manner most appropriate to the way in which each situation develops.

The Contractor shall furnish all personnel, supervision, management, equipment, materials, transportation, tools, and supplies required to plan, schedule, coordinate, and assure effective performance of all required role player support services for TSA, FAMS, and FFDO training at the TSATC, FAA, WJHTC, Atlantic City International Airport, Atlantic City, New Jersey; FFDO training at the Dallas Federal Flight Deck Officer Training Facility, Coppell, Texas; FFDO training at the Atlanta Federal Flight Deck Officer Training Facility, College Park, Georgia; and CTC, LAFB, San Antonio, Texas. These services include scheduling Role Player Personnel, in coordination with the Contracting Officer’s Representative (COR) and training Role Player Personnel, in coordination with the COR, TSA, FAMS, FFDO, and CTC personnel.

4. **Identification of Statutory Authority Permitting Other Than Full and Open Competition.** The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1)) “Only one responsible source and no other supplies or services will satisfy agency requirements” (See FAR 6.302-1). In alignment with 6.302-1 (a)(2)(ii)(B), supplies may be deemed to be available only from the original source in the case of a follow-on contract for the continued development or production of a major system or highly specialized equipment, including major components thereof, when it is

likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements.

5. **Identification of Exception to the Buy American Statute** Not applicable. This acquisition is for Role Player Support Services, not Supplies (FAR 25.1) or Construction Materials (FAR 25.2).
6. **Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.** The TSA FAMS, FFDO Recurrent Training Programs, and the CTC, utilize role players to train the TSA front-line operational workforce. The absence of the mission critical Role Player Support Services would directly impact operations for the TSA FAMS, FFDO, and CTC Programs and would create a significant risk to national security.
7. **Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.** A pre-solicitation notice will be posted at SAM.gov in accordance with FAR 5.201 after this J&A is approved. The notice will stipulate the Government intends to solicit and negotiate with only one source under the authority of 6.302-1.
8. **Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.** The Contracting Officer will utilize Narcorps' GSA price list, the independent government cost estimate, and the prior acquisition history for the same services to determine that the anticipated price will be fair and reasonable. In addition, the contracting officer will seek additional discounts off Narcorps' GSA price list.
9. **Description of Market Research.** TSA issued a Request for Information (RFI) # 70T0102317670N029 via sam.gov on 04/26/2023. A total of 21 companies responded, five (5) of which were Woman Owned Small Business (WOSB), including the incumbent, are available on GSA Schedule and determined capable of performing the requirements of the Statement of Work (SOW). Accordingly, the TSA Small Business office has approved the acquisition strategy for 100% Woman Owned Small Business (WOSB) set aside for the follow-on competitive contract, to be solicited on GSA Schedule. As detailed in paragraph #6 above, this J&A is for an interim sole source contract extension (up to 6 months from 04/01/2025 to 09/30/2025) to current contract # 70T01018C9NOTD001 that ends on 03/31/2025. The follow-on contract competitive award was protested at GAO and is working through the protest process for resolution and additional time is required to avoid a break in service. The TSA Role Player Support Services are a mission essential requirement that are critical to TSA's mission.
10. **Any Other Facts Supporting the Use of Other Than Full and Open Competition.**

See paragraph 6 above.
11. **A Listing of the Sources, if Any That Expressed, in Writing, an Interest in the Acquisition.**

See paragraph 7 above.
12. **A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.**

See paragraph 9 above.

13. **Contracting Officer's Certification.** I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

[Redacted] Date
Contracting Officer

14. **Technical/Requirements Personnel Certification.** I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.

[Redacted Signature]

[Redacted] Date
Supervisory Federal Air Marshal
Law Enforcement/Federal Air Marshal Service

15. **Competition Advocate Approval.**

[Redacted Signature]

[Redacted] Date
Alternate Competition Advocate